recent announcement by Pakistani Prime Minister Yousaf Raza Gillani regarding the repeal of the FCR drew mixed reactions from tribesmen and political leaders, some of whom called for amendments to the FCR, rather than its repeal.

THE U.S. GOVERNMENT HAS NOT MET NATIONAL SECURITY GOALS IN PAKISTAN'S FATA

The United States has not met its national security goals to destroy the terrorist threat and close the safe haven in the FATA, despite more than $10.5 billion in U.S. support to Pakistan since 2002. Various national security strategies have called for the use of all elements of national power, such as diplomatic, military, intelligence, development assistance, economic, and law enforcement support, to meet these goals; however, the United States has relied principally on supporting the Pakistani military to meet these goals. According to Defense and State, the Pakistani government deployed up to 120,000 military and paramilitary forces to combat terrorism in the FATA. Despite this effort, the 2007 NIE, State and embassy documents, and Defense and State officials, including those operating in Pakistan, have concluded that al Qaeda has regenerated its ability to attack the United States and succeeded in establishing a safe haven in Pakistan's FATA.

Although State Has Reported Some Progress in Pakistan's FATA, Other Sources Indicate Resurgence of an al Qaeda Threat and the Establishment of a Terrorist Safe Haven in the FATA

On October 1, 2007, State provided Congress with a report in response to a requirement in the Implementation of the 9/11 Commission Act of 2007 (9/11 Commission Act).[7] The report stated that it had determined that Pakistan was (1) committed to eliminating from Pakistani territory any organization, such as the Taliban, al Qaeda, or any successor engaged in military, insurgent, or terrorist activities in Afghanistan; (2) undertaking a comprehensive military, legal, economic, and political campaign to achieve the goal described; and (3) making demonstrated, significant, and sustained progress toward eliminating support or safe havens for terrorists. Notwithstanding State's report to Congress, we found broad agreement that al Qaeda had established a safe haven in the FATA and reconstituted its attack capability. In particular, the unclassified versions of the 2007 NIE and 2008 *Annual Threat Assessment* state that al Qaeda has regenerated its attack capability and secured a safe haven in Pakistan's FATA.[8] These conclusions are supported by a broad array of sources, including Defense, State, and senior U.S. embassy officials in Pakistan.

The NIE and other sources have found that al Qaeda has established a safe haven in Pakistan. The DNI's 2008 assessment stated that the safe haven in Pakistan provides al Qaeda with many of the same advantages it had when it was based across the border in Afghanistan. According to the assessment, the safe haven in the FATA serves as a staging area for al Qaeda's attacks in support of the Taliban in Afghanistan. Further, it serves as a location for training new terrorist operatives for attacks in Pakistan, the Middle East, Africa, Europe, and the United States. U.S. government officials in Washington and Pakistan also acknowledge

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